

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
DANIEL GRULLON,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE OFFICER COREY D.
JOHNSON, POLICE OFFICER JOHN DOE, name is
fictitious as real name is unknown at present time and
EAN HOLDINGS, LLC,

Defendants.
-----X

SUMMONS

Plaintiffs designate Kings
County as the place of trial.

The basis of venue is:
Plaintiff's place of residence:

220 E 18th Street, Apt 1M
Brooklyn, NY 11226

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Rockville Centre, New York
May 16, 2023

Yours, etc.,

ISAACSON, SCHIOWITZ & KORSON, LLP



MARTIN SCHIOWITZ, ESQ.
Attorneys for Plaintiff
371 Merrick Ro 16ad, Suite 302
Rockville Centre, New York 11570
(516) 800-9000

TO: SEE RIDER

RIDER

CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER COREY D. JOHNSON
1 Police Plaza
New York, N.Y. 10038

POLICE OFFICER JOHN DOE
1 Police Plaza
New York, NY 10038

EAN HOLDINGS, LLC
CT Corporation System
28 Liberty Street
New York, NY 10005
VIA SECRETARY OF STATE

Error! Bookmark not defined.SUPREME COURT OF
THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
DANIEL GRULLON,

Plaintiff,

VERIFIED COMPLAINT

- against -

CITY OF NEW YORK, POLICE OFFICER COREY D.
JOHNSON, POLICE OFFICER JOHN DOE, name is
fictitious as real name is unknown at present time and
EAN HOLDINGS, LLC,

Defendants.
-----X

Plaintiff, DANIEL GRULLON, by his attorneys, *ISAACSON, SCHIOWITZ & KORSON, LLP*, complaining of the defendants, respectfully allege, upon information and belief, as follows:

1. That at all times hereinafter mentioned, the plaintiff was, and still is, a resident of the County of Kings, State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

2. At all times relevant and material herein, the defendant, CITY OF NEW YORK, (hereinafter referred to as "CITY") was, and still is, a municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.

3. That prior hereto on September 8, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on CITY and that thereafter said CITY refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment

thereof, and that thereafter, and within the time provided by law, this action was commenced.

4. That prior hereto on November 17, 2022, a 50-h Hearing was held.

5. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

6. That at all times hereinafter mentioned, defendant, CITY, maintained a principal place of business in the County of New York located at 100 Church Street, New York, New York 10007.

7. That at all times relevant and material herein, defendant, EAN HOLDINGS, LLC, (hereinafter referred to as EAN), was and still is a Foreign Limited Liability Company duly registered in and existing under and by virtue of the laws of the State of New York.

8. That at all times hereinafter mentioned, defendant, EAN, maintained a principal place of business in the State of Oklahoma located at 14002 E 21st Street, Suite 1500, Tulsa, OK 74134.

9. That at all times hereinafter mentioned, defendant, CITY, was the owner of a 2020 Chrysler motor vehicle bearing New York State plate number JRR6559.

10. That at all times hereinafter mentioned, defendant, EAN, was the owner of a 2020 Chrysler motor vehicle bearing New York State plate number JRR6559.

11. That at all times hereinafter mentioned, defendant, POLICE OFFICER COREY D. JOHNSON (hereinafter referred to as "OFFICER") operated the aforementioned motor vehicle.

12. That at all times hereinafter mentioned, defendant, OFFICER, operated the aforementioned motor vehicle with the knowledge, permission, and consent of defendant, CITY.

13. That at all times hereinafter mentioned, defendant, OFFICER, operated the

aforementioned motor vehicle with the knowledge, permission, and consent of defendant, EAN.

14. That at all times hereinafter mentioned, defendant, OFFICER, operated the aforementioned motor vehicle in the scope of his employment as a police officer with the New York City Police Department of defendant, CITY.

15. That at all times hereinafter mentioned, defendant, POLICE OFFICER JOHN DOE, name is fictitious as real name is unknown at present time (hereinafter referred to as (“JOHN DOE”)) supervised a group of police officers employed by defendant, CITY, including defendant, OFFICER.

16. That at all times hereinafter mentioned, defendant, “JOHN DOE”, was employed as a police officer with the New York City Police Department of defendant, CITY.

17. That at all times hereinafter mentioned, defendant, EAN, maintained the aforementioned motor vehicle.

18. That at all times hereinafter mentioned, defendant, OFFICER, maintained the aforementioned motor vehicle.

19. That at all times hereinafter mentioned, defendant, “JOHN DOE”, maintained the aforementioned motor vehicle.

20. That at all times hereinafter mentioned, defendant, CITY, managed the aforementioned motor vehicle.

21. That at all times hereinafter mentioned, defendant, EAN, managed the aforementioned motor vehicle.

22. That at all times hereinafter mentioned, defendant, OFFICER, managed the aforementioned motor vehicle.

23. That at all times hereinafter mentioned, defendant, “JOHN DOE”, managed the

aforementioned motor vehicle.

24. That at all times hereinafter mentioned, defendant, CITY, controlled the aforementioned motor vehicle.

25. That at all times hereinafter mentioned, defendant, EAN, controlled the aforementioned motor vehicle.

26. That at all times hereinafter mentioned, defendant, OFFICER, controlled the aforementioned motor vehicle.

27. That at all times hereinafter mentioned, defendant, "JOHN DOE", controlled the aforementioned motor vehicle.

28. That at all times hereinafter mentioned, defendant, CITY, repaired the aforementioned motor vehicle.

29. That at all times hereinafter mentioned, defendant, EAN, repaired the aforementioned motor vehicle.

30. That at all times hereinafter mentioned, defendant, OFFICER, repaired the aforementioned motor vehicle.

31. That at all times hereinafter mentioned, defendant, "JOHN DOE", controlled the aforementioned motor vehicle.

32. That at all times hereinafter mentioned, Daniel Gullon, was the owner of a 2022 Kawasaki KX112 dirt bike.

33. That at all times hereinafter mentioned, Daniel Gullon, was the operator of the aforementioned dirt bike and was traveling north on the roadway of Gateway Drive, Brooklyn, N.Y.

34. That at all times herein mentioned, Gateway Drive at or near the intersection of

Gateway Drive S, Brooklyn, New York, were and still are public roadways and/or thoroughfares.

35. That on or about the 24th day of July, 2022, at approximately 4:30 p.m. the aforesaid motor vehicle operated by defendant, OFFICER, made a left turn from the right southbound lane without emergency lights or siren activated, collided with and struck the dirt bike operated by plaintiff.

36. That as a result of the aforesaid contact, the plaintiff was seriously injured.

37. That the aforesaid occurrence was caused by reason of the negligence of the defendants without any fault or negligence on the part of the plaintiff contributing thereto.

38. That defendants were negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of the aforementioned motor vehicle.

39. That by reason of the foregoing, plaintiff sustained severe and permanent personal injuries.

40. That plaintiff sustained serious injuries as defined in Subdivision d of §5102 of the Insurance Law-Recodification.

41. That plaintiff sustained serious injuries and economic loss greater than basic economic loss so as to satisfy the exceptions of §5104 of the Insurance Law.

42. That plaintiff is not seeking to recover any damages for which he has been reimbursed by No-Fault Insurance and/or for which No-Fault insurance is obligated to reimburse plaintiff. Plaintiff is only seeking to recover those damages not recoverable through No-Fault Insurance under the facts and circumstances in this action.

43. That by reason of the foregoing and the negligence of the said defendants, its agents, servants and/or employees, the plaintiff has been rendered sick, sore, lame, maimed and disabled and suffers and continues to suffer great pain and anguish. That he has been unable to attend to his

usual vocation and activities and that he has been obliged to expend, and will expend in the future, sums of money for medical aid and attention, and that by reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

44. That this action falls within one or more exemptions set forth in CPLR §1602.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST AND FALSE IMPRISONMENT**

45. That at all times hereinafter mentioned, plaintiff repeats, reiterates and re-alleges each and every allegation contained herein as though same more fully set forth at length herein.

46. That at said time and place, plaintiff was operating his bike northbound on the roadway of Gateway Drive at or near the entrance to the Gateway Center and approximately 30 feet south of 129 Gateway Drive, Brooklyn, New York.

47. That at said time and place, defendant's motor vehicle, on information and belief, was operated by defendant, OFFICER COREY D. JOHNSON, in a southbound direction on Gateway Drive, Brooklyn, New York.

48. That at all times hereinafter mentioned, Gateway Drive is a two way road with two moving lanes in each direction.

49. That said vehicle operated by defendant, OFFICER COREY D. JOHNSON and owned and/or registered to defendant, EAN, on information and belief, was an unmarked police vehicle that was being operated under official business on behalf of defendant, CITY.

50. That at said time and place, a tractor trailer was stopped in the southbound left lane of Gateway Drive at its intersection with Gateway Drive S. Brooklyn, New York.

51. That at said time and place, defendants operated the aforesaid unmarked police

vehicle in the right hand southbound lane of Gateway Drive. Brooklyn, New York.

52. That at the aforesaid time, the motor vehicle operated by defendant, OFFICER COREY D. JOHNSON, came from behind the stopped tractor trailer in the right hand lane and proceeded to make a left turn in front of the tractor trailer at the aforesaid intersection.

53. That at said time and place, the defendant's motor vehicle crashed into plaintiff who just entered the aforesaid intersection.

54. The aforesaid collision caused plaintiff to be thrown from his bike.

55. That as a result of said collision, plaintiff was seriously injured.

56. That plaintiff was wrongfully and without just cause hand cuffed at the scene and physically restrained and confined and taken by the police to Brookdale Medical Center where he was admitted for several days all under police guard, restraint and confinement during this time.

57. That defendant. JOHN DOE. wrongfully and without just cause ordered that plaintiff be arrested, restrained and charged with violating the law.

58. On July 27th, 2022, plaintiff was released from the hospital and taken in handcuffs by the police from Brookdale Medical Center to a police precinct and then taken to Central Booking where he was charged with violations of New York Penal Law §120.20 Reckless Endangerment 2nd, New York Penal Law §240.20 05 Obstructing Traffic, New York Penal Law §195.05 00 Obstruction of Government Administration 2nd and violations under VTL 1128.A.OA Failure To Stay in a Single Lane, VTL 1225A 00, Driving a Motor Vehicle on/across a Public Sidewalk, VTL 1212 00 Reckless Driving, VTL 1180. A.0A Imprudent Speed, and VTL 1111.D1 D1 Traffic Light: red. Plaintiff was released that day after entering a plea of not guilty.

59. That the aforesaid charges, arrest, confinement against plaintiff were wrongful, and without legal authority or justification.

60. That defendant CITY, NYPD and defendant POLICE OFFICERS wrongfully instigated, directed, participated in the arrest and confinement of plaintiff.

61. That all charges against plaintiff were subsequently dropped or dismissed.

62. That as a result of the above, plaintiff suffered pain and suffering, emotional distress, psychological injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION

63. That at all times hereinafter mentioned, plaintiff repeats, reiterates and re-alleges each and every allegation contained herein as though same more fully set forth at length herein.

64. That as a result of the aforesaid accident, plaintiff sustained property damage to his 2022 Kawasaki dirt bike KX112 in the sum of Seven Thousand Four Hundred Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

65. That at all times hereinafter mentioned, plaintiff repeats, reiterates and re-alleges each and every allegation contained herein as though same more fully set forth at length herein.

66. That the aforementioned occurrence was a result of the negligence, carelessness and recklessness of the defendants in negligently hiring competent staff; were incompetent and/or failed to properly train and/or hire competent personnel; failing to take the necessary steps and measures in safeguarding the plaintiff; and in otherwise being negligent, reckless and careless in violating applicable rules, laws, statutes, codes and/or regulations, all of which defendant knew, or in the exercise of reasonable procedure should have known.

WHEREFORE, The plaintiff demands judgment against the defendants in all causes of action in an amount, which exceeds the jurisdictional limitations of all lower courts, which would otherwise have jurisdiction over this action, together with the costs and disbursements of

this action.

Dated: Rockville Centre, New York
May 16, 2023

Yours, etc.,

ISAACSON. SCHIOWITZ & KORSON, LLP



MARTIN SCHIOWITZ, ESQ.

Attorneys for Plaintiff

371 Merrick Road, Suite 3012

Rockville Centre, New York 11570

(516) 800-9000

[illegible]

Matth Khouw

12 of 16

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DANIEL GRULLON,

Index No.:

Plaintiff,

- against -

**NOTICE REGARDING
AVAILABILITY OF
ELECTRONIC FILING**

CITY OF NEW YORK, POLICE OFFICER COREY D.
JOHNSON, POLICE OFFICER JOHN DOE, name is
fictitious as real name is unknown at present time and
EAN HOLDINGS, LLC,

Defendants.

-----X

PLEASE TAKE NOTICE that plaintiff in the case captioned above intends that this matter proceed as an electronically-filed case in the New York State Courts Electronic Filing System (“NYSCEF”) in accordance with the procedures therefore, set forth in Uniform Rule 202.5-b and described below. Under that Rule, filing and service of papers by electronic means cannot be made by a party nor can electronic service be made upon a party unless that party has consented to use of the System for the case in question. Each party served with this Notice must promptly file with the court and serve on all other parties either consent or a declination of consent to electronic filing and service through NYSCEF for this case. (See Instruction # 2 below.)

General Information

Electronic filing offers significant benefits for attorneys and litigants, permitting documents to be filed with the County Clerk and the court and served, between or among consenting parties, by posting the documents on the NYSCEF Website, which can be done at any time of the day or night on any day of the week. There is no fee to use the NYSCEF System, whether for filing, service, or consultation of the electronic docket, nor is there a charge to print print documents from the docket. Normal filing fees must be paid, but this can be done by credit or bank card on-line. For additional procedures and information, see Uniform Rule 202.5-b, any e-filing protocol that may have been promulgated by the court in question, and the NYSCEF Website at www.nycourts.gov/efile.

Instructions

1. Service of this Notice constitutes consent to e-filing and a statement of intent by the undersigned to use the NYSCEF System in this case. When an action or proceeding is being commenced through the NYSCEF System, this Notice must accompany service of the initiating papers.

2. Each party served with this Notice may consent to e-filing either: (i) by filing with the court and serving on all parties of record a consent to e-filing, or (ii) if an authorized e-filing user, by filing a consent electronically in the manner provided at the NYSCEF site. Parties who do not wish to consent must file and serve a written declination of consent. If one party or some but fewer than all parties consent, NYSCEF may be used by and between or among consenting parties.

3. Each participating attorney, unless already registered, or self-represented party must PROMPTLY create a NYSCEF account and obtain the confidential Filing User Identification Number and Password necessary to use the system. To create a NYSCEF account, go to www.nycourts.gov/efile click the Create an Account link, and follow the instructions.

4. For additional information about NYSCEF, see the User's Manual and Frequently Asked Questions on the Website, or contact the court in question or the NYSCEF Resource Center (at 646-386-3033 or efile@courts.state.ny.us).

Dated: Rockville Centre, New York
May 16, 2023

Yours, etc.,

ISAACSON, SCHIOWITZ & KORSON LLP



MARTIN SCHIOWITZ, ESQ.
Attorneys for Plaintiff
371 Merrick Road, Suite 302
Rockville Centre, New York 11570
(516) 800-9000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DANIEL GRULLON,

Index No.:

Plaintiff,

CONSENT TO E-FILING

- against -

CITY OF NEW YORK, POLICE OFFICER COREY D.
JOHNSON, POLICE OFFICER JOHN DOE, name is
fictitious as real name is unknown at present time and
EAN HOLDINGS, LLC,

Defendants.

-----X

I, _____, am an attorney in good standing representing a party in the above-captioned action, and hereby consent to the use of the New York State Courts Electronic Filing System ("NYSCEF") in this case. I agree to be bound by the regulations governing the NYSCEF System (22 NYCRR §§ 202.5-b) and the procedures of the NYSCEF system as reflected in the User's Manual approved by the Chief Administrator of the Courts and posted on the NYSCEF website.

If, as indicated below, I am not currently an authorized e-filing user in the NYSCEF System, I understand that I must first obtain a user ID and password before I may file any documents with NYSCEF and that I may do so by accessing the Create an Account button on the NYSCEF Login screen (<https://iapps.courts.state.ny.us/nyscef/Login>). I also understand that once I receive these credentials, my primary e-mail address, listed below, will be used for service of documents.

Dated: _____

Registered User: ☐ Yes ☐ No

Print Name _____

Signature _____

Firm Name _____

Party(s) Represented

Address _____

UCS Attorney Registration #

Phone Number

E-Mail _____
(Primary – to be used for service)

2nd E-Mail _____

INDEX NO.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

=====

DANIEL GRULLON,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE OFFICER COREY D.
JOHNSON, POLICE OFFICER JOHN DOE, name is
fictitious as real name is unknown at present time and
EAN HOLDINGS, LLC,

Defendants.

=====

SUMMONS & VERIFIED COMPLAINT

ISAACSON, SCHIOWITZ & KORSON, LLP

Attorneys for Plaintiff

371 Merrick Road, Suite 302

Rockville Centre, New York 11570

(516) 800-9000

Fax No: (866) 240-4535